## AGENDA POINTS FOR THE PTFC MEETING TO BE HELD ON 27.07.2023 AT 11:30 A.M (CONFERENCE HALL, ACC)

### A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 30.06.2023:

**1.** ACAAI requested that while clearing Pharma (General) products, the EO opens some cartons for examination. They requested that EO should mention the carton numbers opened for examination in their examination report. These numbers should appear in the final print of the shipping bill.

**Action Taken:**

Shri Bala Ayer, from ACAAI who had raised the point was absent. It was decided to keep the point open for next meeting.

**Commissionerate: Export** **(Point Open)**
**Action by: ACAAI**

**2.** ACAAI requested that some Pharma items like bulk drugs are packed under special climatic conditions in their factory in sealed drums. The seal numbers of each drum has to be sent to the consignee for his verification when received by him. If the seal is broken or the seal number does not tally, the consignee rejects the whole consignment and send it back due to fear of contamination of the product.

They requested that at the time of **exporting** such products, the shipment may be allowed without opening for examination. These drums can be x-rayed and marks and numbers may be checked.

**Action Taken:**

The matter was discussed. MIAL informed that no such complaint has been received by them. In the previous meeting held on 27.04.2023 direction was given to MIAL to conduct a joint survey with the officers of CDSCO and some Pharma exporters to ascertain the special climatic conditions being maintained by MIAL to wipe out the fear of contamination of the product. But no action has been taken by MIAL. Since Shri Bala Ayer, from ACAAI who had raised the point was absent in last two PTFC Meetings, it was decided that if he does not remain present on next meeting, it will be presumed that the issue has been resolved.

**Commissionerate: Export** **(Point Open)**
**Action by: MIAL**

**3.** BCBA requested that **Waiver of demurrage charges** is not being granted by both custodians during the duty payment issue from 31/03/2023 to 10/04/2023.

**Action Taken:**

The matter was discussed. Custodian MIAL informed that the matter is still under consideration of Airport Operators Association of India. Once the decision is taken, they will act accordingly. On this reply of MIAL officials, BCBA officials handover to MIAL officials a copy of Credit Note in favour of M/s. L. T. Technology Services for import demurrage charges issued by Ahmadabad International Airport Limited operated by M/s. Adani.

The AIASL officials informed that they have started giving refund of the demurrage charges.



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The Chairman of the meeting directed the MIAL officials to submit their reply within a week time regarding not giving refund of demurrage etc. at ACC, Mumbai also directed the AIASL to submit a copy of refund of demurrage charges given by them to MIAL officials for information.

**Commissionerate: Import**

**(Point Open)**
**Action: MIAL**

**4.** IMC requested that with the launch of ECL on 1.4.2023 the Exim Industry faced massive delays. The CBIC issued a Circular that all Interest/Fines/Penalties for late filing, and warehouse charges should be waived. Unfortunately, the same has not been adhered to by the Custodian at the Air Cargo Complex. Remission Claims are not even acknowledged by the Custodians. They see no reason as to why stringent action should not be taken against the Custodians who have not honoured the CBIC order.

**Action Taken:**

The matter was discussed. Custodian MIAL informed that the matter is still under consideration of Airport Operators Association of India. Once the decision is taken, they will act accordingly. On this reply of MIAL officials, BCBA officials handover to MIAL officials a copy of Credit Note in favour of M/s. L. T. Technology Services for import demurrage charges issued by Ahmadabad International Airport Limited operated by M/s. Adani.

The AIASL officials informed that they have started giving refund of the demurrage charges.

The Chairman of the meeting directed the MIAL officials to submit their reply within a week time regarding not giving refund of demurrage etc. at ACC, Mumbai also directed the AIASL to submit a copy of refund of demurrage charges given by them to MIAL officials for information.

**Commissionerate: Import**

**(Point Open)**
**Action: MIAL**

**5.** IMC requested that though recovery of DMS charges has been stopped since long and is not applicable at New Custom House, JN Custom House, as well as Air cargo complex for import consignments. The same is being recovered on Export Shipping Bills only at the Air Cargo Complex. Accordingly, it is requested that recovery of the said charges be kindly reconsidered, in the interest of smoother and easy processing.

**Action Taken:**

The matter was discussed. It was decided that after introduction of E-Sanchit, there is no point in charging DMS charges. However, after receipt of a complete report from Export Shed, decision will be taken on this issue.

**Commissionerate:Export**

**(Point Open)**
**Action: ADC (Export)**

**6.** BCBA requested that TSK office is required to be shifted inside the cargo building instead of outside building. Members are facing difficulty in attending the work at Appraising Hall and TKS office, which is outside the ACC building. During the rainy season the members will face more trouble if the TSK Office is not shifted inside the ACC building.

**Action Taken:**



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The matter was discussed. Directions were given to MIAL to identify a suitable space for Shifting TSK Section inside the cargo building and to submit a reply within a week's time. If required, a separate note with a request to allot a suitable space for TSK Section inside Air Cargo Complex will be issued to General Commissioner for necessary action.

**Commissionerate: General** **(Point Open)**
**Action: MIAL**

**7.** BCBA requested that at present trade is facing considerable difficulties since the cargo scanner machine size of MIAL is too small. MIAL Security is insisting on hand checking of cargo which results in opening up of export packages where LEO has already been granted by Customs. This is creating lot of difficulty to the export trade and hence export scanning machine which can scan larger packages should be installed immediately. Opening of any export package after LEO creates serious problem for export trade.

**Action Taken:**

The matter was discussed. MIAL representative informed that every export shipments get scanned before handing over the shipment for export. In case of oversized/over dimensioned shipments which cannot be scanned are being opened and hand checked for security purpose as per BCAS norms before let export order. It was decided that once the let export order is given, no shipment may be opened for security check. The directions were issued to MIAL officials to submit report to Export Shed AC & copy of the same should be marked to the Commissioner (Import) regarding number of odd sized packages opened for security check in recent past.

**Commissionerate:Export** **(Point Open)**
**Action: MIAL**

**B. <u>FRESH AGENDA POINTS:</u>**

**8.** BCBA requested that during the last PTFC meeting, it was decided that the EDI section will handle the IDPMS issue. They requested EDI section to issue a public notice for the trade's benefit, advising them to contact the EDI section for IDPMS related matters. They propose resolving the issue via email communication between Bank and the department to confirm import clearance at location INBOM 4. Upon receiving the importer's bank's request via email, asking for the bill of entry clearance from INBOM4, the department's confirmation would be sufficient for the bank to remit payment to the overseas supplier.

**Commissionerate: Import.**

**9.** BCBA requested that trade is facing tremendous delay in clearance of faceless bill of entries. They requested that a helpdesk be created at ACC Mumbai for pending Bills of Entries with FAG which are lying for more than 24 hrs.

**Commissionerate: Import.**

**10.** BCBA informed that delay in Faceless Import Clearance is happening due to the following issues:

- Examination order is not received from systems once goods registration is done for BE
- Wrong Examination orders are given by FAG
- Wrong Assessment done by FAG for sample for test, provisional assessment instead of final assessment.

They requested to kindly address the issue with higher authorities for smooth clearance of import consignments.


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**Commissionerate: Import.**

**11.** BCBA requested MIAL Authorities to provide proper infrastructure for members and trade.

- Proper lights, fans inside the cargo complex
- Smooth access for the visitors coming inside the cargo complex, Ramp which is provided one way for pedestrian / handicapped person which is also having raw surface.
- Canteen inside the cargo complex for refreshment for trade members.

**Commissionerate: General.** **Action: MIAL**

**12.** BCBA requested that currently Heavy packages at Import sheds (MIAL & AIASL) are delivered by Fork Lifts. Certain electronic equipment and machinery requires the packages to be placed within the vehicle after loading by the Fork Lift. Currently the Fork Lift operators use very primitive methods to push the packages within the vehicle which damages the pallet due to friction. They suggested that the Import truck dock areas in both heavy shed must be equipped with dock levelers to enable usage of hand pump trolleys inside the vehicle so that packages can be properly placed inside the vehicle and damage to packages during loading is eliminated.

**Commissionerate: General.** **Action: MIAL/AIASL**

**13.** BCBA requested for issuance of PN with SOP for claiming refund of interest paid due to technical problem in payment of Custom duty via ECL.

Regarding claiming of refund of interest paid on late payment of customs duty amount due to technical difficulties in payment of customs duty via ECL. Members are unable to submit their refund claim under section 27 of Customs Act, 1962.

They requested to issue a public notice with SOP for claiming refund of interest paid due to systems technical problems.

**Commissionerate: Import**

**14. Any other points with the permission of chair.**

Copy to:-

1. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
2. All Addl./Jt. Commissioner of Customs, Import / Export / General, ACC.
3. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
4. DC/EDI for uploading on ACC website (via E-mail)
5. PGAs, ACC, Mumbai (via E-mail)
6. Office copy.



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